

B. The Justifications Relied Upon to Create Absolute Judicial Immunity are Not Supported Within the Common Law or Legislative History of §1983.

Chief Justice Warren's rationale in *Pierson v. Ray*, 386 U.S. 547 (1967), for holding judges immune from liability in damages for judicial acts challenged under §1983, was two-pronged: (1) The doctrine of absolute immunity was incontrovertibly "established at common law;" *id.*, at 554; (2) [T]he legislative record gives no clear indication that Congress meant to abolish wholesale all common-law immunities." *Id.* However, while the Chief Justice's opinion for the Court recognized that the doctrine of judicial immunity is entirely judge-made, he failed to assess accurately both its common law background and the legislative history of §1983, *Pierson v. Ray*, 386 U.S. 547 (Douglas, J. dissenting); Kates, *Immunity of State Judges Under the Federal Civil Rights Acts: Pierson v. Ray Reconsidered*, 65 Nw. U. L. Rev. 615, 617-623 (1970); Note, *Immunity of Federal and State Judges from Civil Suit – Time for a Qualified Immunity?*, 27 Case West. Res. L. Rev. 727, 727-740 (1977); Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 323-328 (1969).

1. Common Law

While some form of judicial immunity has a long history, see *Floyd v. Barker's Case*, 77 Eng. Rep. 1305 (Star Chamber 1608), that history is somewhat uneven. Originally, English law permitted civil suits against judges in actions complaining of false judgments, 2 F. Pollock & F. Maitland, *The History of English Law* 664-668 (2d ed. 1898). Later, when English common law created absolute immunity from tort liability, it applied only to judges of superior courts. The

Justices Protection Act, 11 & 12 Vict. c. 44 (1848); see, *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868). In this country, "absolute immunity from tort actions did not fully develop until the 1870's." Note, *Immunity of Federal and State Judges from Civil Suit – Time for Qualified Immunity?*, 27 Case West. Res. L. Rev. 727, 731 (1977). In a survey of 19th century case law in 14 randomly selected eastern and midwestern states, it was found that "in nine states the prevailing rule was absolute immunity, in four states immunity depended upon the judge's good faith, and in one state the law was inconclusive." *Id.* A more extensive survey revealed that "by 1871, thirteen states had adopted the absolute immunity rule; six states ruled that judges were liable if they acted maliciously, in nine states, courts had faced the issue but had not ruled clearly one way or the other; and nine states had apparently not faced the issue." Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 326-327 (1969).

When, in 1868, the Supreme Court considered the issue for the first time, it declared that judges "are not liable to civil actions for their judicial acts, even when such acts are in excess of their jurisdiction, unless perhaps where the acts, in excess of jurisdiction are done maliciously or corruptly." *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868). Thus, the Congress of the United States when it began its deliberations on H.R. 320, a bill to enforce the provisions of the fourteenth amendment, section one of which would eventually become §1983, could not have been laboring under the impression that the common law of either England or the United States unalterably, uniformly, or universally held that judges were absolutely immune from traditional remedies at law. It was not until a year after Congress enacted the predecessor to §1983 (17 Stat. 13 (1871)) that Justice